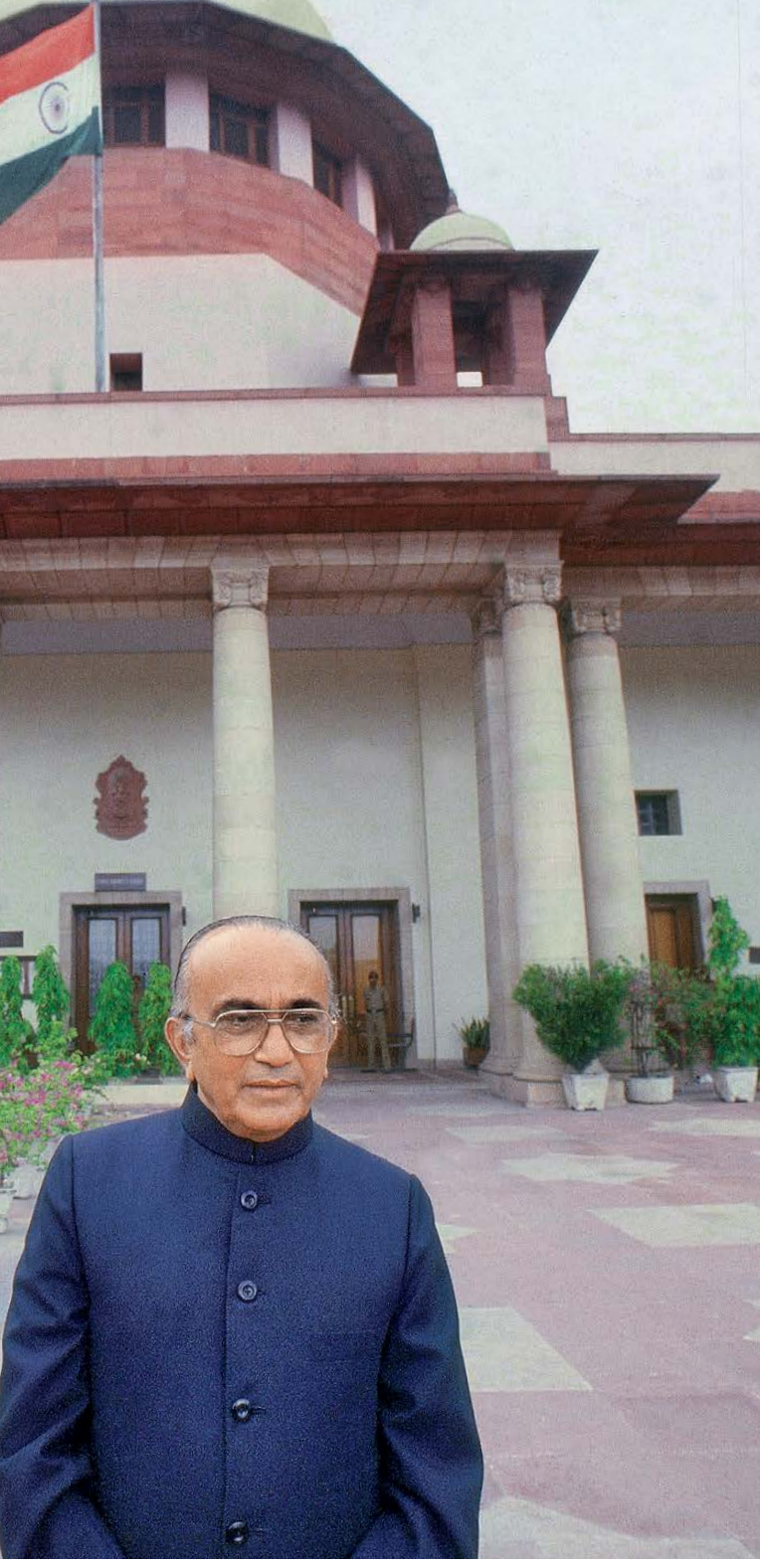


BHAWAN SINGH

LANDMARK PIL VERDICTS

» **Hussainara Khatoon vs State of Bihar (1979):** Recognised right to a speedy trial as part of right to life and liberty under Art. 21, leading to the release of over 40,000 undertrials

» **Justice K.S. Puttaswamy vs Union of India (2017):** Declared right to privacy a fundamental right

» **Vishaka vs State of Rajasthan (1997):** Guidelines to prevent sexual harassment at the workplace. 'Vishaka Guidelines' later codified as POSH Act, 2013


ANNIVERSARY ISSUE 30 TURNING POINT

1986
Public Interest Litigation

"It has broken down judicial orthodoxy and procedural shackles"

FROM THE ARCHIVES
Dec. 26, 2005

Anniversary Issue
30 Momentous Years 1986/PIL

In the new age, the PIL is here to stay. India must be grateful. But then there are, as expected, voices of dissent. Judicial engagement of social tugs and pulls draws attention away from the democratic corrective forces and robs society of the excitement of democracy.

Judicial activism becomes a duty when constitutional deprivation is shown.

–Justice (retd.) M.N. Venkatachaliah, Ex-CJI

DID YOU KNOW?

The judiciary has even accepted letters as PILs. 'Epistolary jurisdiction' led to the Sunil Batra vs Delhi govt case, where the SC extended right to human dignity to prisoners

for those unable to access the courts themselves.

However, the PIL's journey has faced challenges. Frivolous and politically motivated PILs have weighed down the judiciary, prompting concerns over judicial overreach. For instance, the *BALCO Employees' Union v. Union of India* (2001), a PIL which challenged the disinvestment of Bharat Aluminium Company. The Supreme Court dismissed it, highlighting that policy decisions are beyond judicial purview unless they infringe on legal rights, and also cautioned against the misuse of PILs for publicity or political agendas, coining the term "publicity interest litigation".

Misuse has continued despite warnings. PILs have been filed seeking bans on films, TV shows and celebrity endorsements, citing cultural or moral grounds. Like the PIL challenging the appointment of tennis star Sania Mirza as Telangana's brand ambassador, claiming it offended the sentiments of state residents. Or *Kushum Lata vs Union of India* in 2006 (a PIL filed by an unsuccessful bidder in a mining lease), where the SC cautioned against PILs being used as "weapons to settle scores" or as vehicles for "private malice or vested interests". But despite these setbacks, the PIL remains a vital force for socioeconomic justice and government accountability. ■